PETITION - FIRST-TIME DRUG POSSESSION CASES

IN THE ..... COURT
(Clerk of the court that granted the conditional discharge - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

CONTROLLED-SUBSTANCE CONDITIONAL DISCHARGE AND EXPUNGEMENT (MISS. CODE ANN. Sec. 41-29-150)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under Miss. Code Ann. Sec. 41-29-150(d)(1); Miss. Code Ann. Sec. 41-29-150(d)(2); Miss. Code Ann. Sec. 41-29-139(c); Miss. Code Ann. Sec. 41-29-139(d) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Section 41-29-150 carries Mississippi's controlled-substance conditional discharge and its associated expungement. A first-time eligible drug possession or paraphernalia case may be handled WITHOUT entering a judgment of guilt: the court defers proceedings, places the person on probation, and on successful completion discharges the person and dismisses the proceedings without an adjudication of guilt. Expungement of the record is then available on application to the court. The benefit is once-only, and a nonpublic record is retained for future eligibility checks, which is the same design as the Sec. 99-19-71(3) first-offender retention. Trafficking under Sec. 41-29-139 is a separate offence and is outside this route entirely; it is also independently excluded from felony expungement under Sec. 99-19-71(2)(a)(iii). The complete current text was obtained on this pass, from the last enacted amendment, Laws 2010 ch. 460 Sec. 2. The conditional discharge is Sec. 41-29-150(d)(1) and the expungement remedy is Sec. 41-29-150(d)(2). Eligibility reaches a person NOT previously convicted of violating Sec. 41-29-139, or the laws of the United States or another state relating to narcotic drugs, stimulant or depressant substances, other controlled substances or marihuana, who is found guilty of a violation of Sec. 41-29-139(c) or (d) - simple possession and paraphernalia - after trial or on a plea. The court may, without entering a judgment of guilt and with the person's consent, defer further proceedings and place them on probation for not more than three years; if no condition is violated, on expiry the court SHALL discharge the person and dismiss the proceedings, without adjudication of guilt. Discharge and dismissal may occur ONLY ONCE with respect to any person, and a nonpublic record is retained by the Bureau of Narcotics solely for the courts to determine whether the person qualifies again. Under (d)(2) the person may then APPLY to the court for an expungement order; the court determines the matter AFTER HEARING and, on the requisite findings, SHALL enter the order. Section 41-29-150 specifies no fee.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it, except where the petition already states the fact - your name, your date of birth and your contact details are printed in this petition and are not asked for again. Fill each item below from the record itself.

[C1 - other name on the case] Any OTHER name this case is under - a former name, a maiden name, an alias, or a misspelling in the court record. Your full legal name is printed in the caption above and in the signature block below, so only this second limb is left for you. Write NONE if there is no other name.
.....
.....

[C2 - county of residence] Which Mississippi county and city do you live in?
.....
.....

[C3 - court level] Which court handled the case - justice court, county court, circuit court, or municipal court? Mississippi has four trial court levels that all handle expungements and people routinely misidentify which one heard their case.
.....
.....

[C4 - court county] Which county was that court in? For a municipal court, which city?
.....
.....

[C5 - cause number] What is the cause or case number?
.....
.....

[C6 - charge name] What were you charged with, and under which Mississippi Code section if you know it?
.....
.....

[C7 - offense date] On what date did the offence happen?
.....
.....

[C8 - arrest date] On what date were you arrested or cited?
.....
.....

[C9 - arresting agency] Which agency arrested or cited you, and what is their case number if you have it?
.....
.....

[C10 - prosecuting authority] Which prosecuting authority handled the case - the district attorney for the circuit district, or a county or municipal prosecuting attorney?

.....
.....

[C11 - charge type] What was the drug charge - simple possession, possession of paraphernalia, or something else? Trafficking, distribution and sale are outside this route.
.....
.....

[C12 - conditional discharge] Did the court place you on probation WITHOUT entering a judgment of guilt, under the conditional discharge provision?
.....
.....

[C13 - discharge date] On what date did the court discharge you and dismiss the proceedings?
.....
.....

[C14 - probation completed] Did you successfully complete the probation and every condition attached to it?
.....
.....

[C15 - prior drug disposition] Have you ever had any prior drug charge, conviction, conditional discharge or dismissal? This benefit is once-only and a nonpublic record is kept for exactly that check.
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under Miss. Code Ann. Sec. 41-29-150(d)(1); Miss. Code Ann. Sec. 41-29-150(d)(2); Miss. Code Ann. Sec. 41-29-139(c); Miss. Code Ann. Sec. 41-29-139(d).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

PROPOSED ORDER - FIRST-TIME DRUG POSSESSION CASES

IN THE ..... COURT
(Clerk of the court that granted the conditional discharge)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under Miss. Code Ann. Sec. 41-29-150(d)(1); Miss. Code Ann. Sec. 41-29-150(d)(2); Miss. Code Ann. Sec. 41-29-139(c); Miss. Code Ann. Sec. 41-29-139(d). The Court, having considered the petition and anything filed with it,

ORDERS that .....

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED .....

.....
(The court signs here if, and only if, it grants the petition.)

CERTIFICATE OF SERVICE - FIRST-TIME DRUG POSSESSION CASES

IN THE ..... COURT
(Clerk of the court that granted the conditional discharge)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or office named here:

Name and office of the person or office to whom the papers were delivered:
.....

Address at which the papers were delivered:
.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:
.....

DATE ..... SIGNATURE OF PETITIONER .....

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RECORDS CHECKLIST - FIRST-TIME DRUG POSSESSION CASES

This records checklist is for Maria-Alejandra O'Shaughnessy-Whitfield.

RECORDS CHECKLIST

Gather these records before filing. Ask the clerk which records must be attached to the petition and whether the clerk requires certified copies. This checklist does not replace any record and is not proof that a missing record exists.

- Certified copy of the conditional discharge order. Ask the clerk for a certified copy of the order deferring proceedings and placing you on probation without an adjudication of guilt.

- Certified copy of the order of discharge and dismissal. Ask the clerk for a certified copy of the order discharging you and dismissing the proceedings.

- Proof of successful completion of probation. Obtain the documentation showing you completed probation and every condition.

- Mississippi criminal history record. Obtain your own Mississippi criminal history so you can see every case on your record before you file. It is the only reliable way to check first-offender status or good conduct across all courts, and self-report is not enough.

Keep the originals. File or serve copies only as the clerk directs. If the discharge or dismissal documentation is missing, stop and get help instead of filing.

FILING INSTRUCTIONS - FIRST-TIME DRUG POSSESSION CASES

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Controlled-Substance Conditional Discharge and Expungement (Miss. Code Ann. Sec. 41-29-150).

Section 41-29-150 carries Mississippi's controlled-substance conditional discharge and its associated expungement. A first-time eligible drug possession or paraphernalia case may be handled WITHOUT entering a judgment of guilt: the court defers proceedings, places the person on probation, and on successful completion discharges the person and dismisses the proceedings without an adjudication of guilt. Expungement of the record is then available on application to the court. The benefit is once-only, and a nonpublic record is retained for future eligibility checks, which is the same design as the Sec. 99-19-71(3) first-offender retention. Trafficking under Sec. 41-29-139 is a separate offence and is outside this route entirely; it is also independently excluded from felony expungement under Sec. 99-19-71(2)(a)(iii). The complete current text was obtained on this pass, from the last enacted amendment, Laws 2010 ch. 460 Sec. 2. The conditional discharge is Sec. 41-29-150(d)(1) and the expungement remedy is Sec. 41-29-150(d)(2). Eligibility reaches a person NOT previously convicted of violating Sec. 41-29-139, or the laws of the United States or another state relating to narcotic drugs, stimulant or depressant substances, other controlled substances or marihuana, who is found guilty of a violation of Sec. 41-29-139(c) or (d) - simple possession and paraphernalia - after trial or on a plea. The court may, without entering a judgment of guilt and with the person's consent, defer further proceedings and place them on probation for not more than three years; if no condition is violated, on expiry the court SHALL discharge the person and dismiss the proceedings, without adjudication of guilt. Discharge and dismissal may occur ONLY ONCE with respect to any person, and a nonpublic record is retained by the Bureau of Narcotics solely for the courts to determine whether the person qualifies again. Under (d)(2) the person may then APPLY to the court for an expungement order; the court determines the matter AFTER HEARING and, on the requisite findings, SHALL enter the order. Section 41-29-150 specifies no fee.

WHERE IT GOES

Clerk of the court that granted the conditional discharge
Application to the court that deferred the proceedings and later discharged and dismissed.
Venue: The court that granted the conditional discharge and entered the dismissal.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: No amount is published here. Section 99-19-72's fee reaches petitions under Sec. 99-19-71 and does not reach Sec. 41-29-150 by its terms. The participant confirms with the clerk. Fee waiver as recorded: Not established. The participant asks the clerk.

WHO MUST BE SERVED

Service as recorded: United States mail or hand delivery, evidenced by the certificate of service. Notice as recorded: The prosecuting authority for the court receives a copy. No response or objection period is established.

WHAT THE RECORD SAYS YOU MUST KNOW

- Mississippi has no statewide expungement form and Sec. 99-19-71 prescribes none. The four archived petition and order PDFs are Fourth Circuit Court District models covering Leflore, Sunflower and Washington counties only: every county field reads '(Washington, Sunflower, or Leflore)', the certificate of service hardcodes the Fourth District DA at Greenville, the signature blocks are dated 2020, and the orders carry an APPROVED AS TO FORM block. They are drafting references only. Court, county and prosecuting authority are participant-data fields and are never hardcoded.
- Build the district-variable fields - court, court level, county, cause number, and the prosecuting authority's name and address - as participant data, never hardcoded. Never default to the Greenville address, the three Fourth District counties, or the year 2020.
- Tell the participant that Mississippi has no statewide expungement form, that practice varies by county and by circuit district, that some districts expect the district attorney to approve the order as to form before the judge will sign, and that they should call the clerk of the court where the case was heard before filing to ask whether that court has its own preferred form or additional requirements.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any prior drug disposition of any kind, since the benefit is once-only.
- The discharge or dismissal documentation is missing.
- The charge may have been trafficking or distribution rather than possession.
- A judgment of guilt was entered, which takes the case outside the conditional discharge route.
- The participant is not a US citizen.
- Obtaining the district attorney's approval as to form is the practical gate on the entire Mississippi product and it is a negotiation, not a filing. LegalEase prepares the certificate of service, the cover letter and the notice calendar; it does not seek, obtain or negotiate the prosecutor's approval, and a declining or silent prosecutor is an attorney handoff.

THE PAGES IN THIS SET

- ms-drug-cd-primary-filing-1: the composed petition, on this route's own statutory ground (First-time drug possession cases)
- ms-drug-cd-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (First-time drug possession cases)
- ms-drug-cd-certificate-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (First-time drug possession cases)
- ms-drug-cd-attachment-4: the route-specific records checklist identifying the records to gather and confirm with the filing clerk (First-time drug possession cases)
- ms-drug-cd-instructions-5: what this set is, where it goes, what it costs, who must be served, and when to stop (First-time drug possession cases)